



CHAPTER cxxxiv.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the North British Railway. A.D. 1904.
—
[22nd July 1904.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the North British Railway (General Powers) Order Confirmation Act 1904. Short title.

A.D. 1904.

SCHEDULE.

NORTH BRITISH RAILWAY (GENERAL POWERS).

Provisional Order to authorise the North British Railway Company to construct a new railway at Inverkeithing and to enter into agreements with the Admiralty as to the sale or use of such railway to acquire and to hold additional lands to extend the time for the purchase of lands and for the completion of certain railways to raise additional capital and for other purposes.

WHEREAS it is expedient that the North British Railway Company (in this Order called "the Company") should be authorised as in this Order provided—

- (1) To make and maintain a railway in the parish of Inverkeithing in the county of Fife and to enter into contracts or agreements with the Admiralty for the sale to the Admiralty of the said railway or for the working and use thereof and of the Inverkeithing and North Queensferry Branch Railway of the Company ;
- (2) To acquire additional lands for the purposes of their undertaking ; and
- (3) To hold certain lands already acquired by them :

And whereas it is expedient—

- (1) To extend the time limited by the North British Railway Act 1901 for the compulsory purchase of certain of the lands described in section 10 of that Act ;
- (2) To further extend the time limited by the North British Railway Act 1895 for the compulsory purchase of lands for the purposes and for the completion of the Kirkcaldy new railways and works by that Act authorised ;
- (3) To extend the time for the sale by the Company the West Highland Railway Company and the Forth Bridge Railway Company as the case may be of superfluous lands ;

- (4) To confirm and sanction a contract of excambion A.D. 1904.
between the Company and the lord provost magis-
trates and councillors of the burgh of Perth and
John Dewar and Sons Limited with reference to
certain lands at or near Perth Station :

And whereas it is expedient that the Company should be authorised to stop up and discontinue the subway in the burgh and parish of Burntisland in the county of Fife which passes under the railway of the Company at or near Scholars Brae :

And whereas it is expedient that the construction of a deviation (already made) in the parish of Channelkirk in the county of Berwick in the lines and in accordance with the levels shown on the plans deposited as herein-after mentioned of the railway now worked by the Company authorised by the Lauder Light Railway Order 1898 should be sanctioned and confirmed and that the Lauder Light Railway Company should be empowered to acquire certain lands in the said parish of Channelkirk for the purposes of their undertaking :

And whereas plans and sections showing the railway at Inverkeithing by this Order authorised to be constructed and the deviation of the Lauder Light Railway herein-before referred to and plans of the lands by this Order authorised to be acquired and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Order were duly deposited with the principal sheriff clerks of the several counties within which the said railway will be and the said deviation has been constructed and those lands are situate which plans sections and books of reference are in this Order respectively referred to as the deposited plans sections and books of reference :

And whereas it is expedient that the Company should be authorised to raise additional capital for the general purposes of their undertaking :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

[Ch. cxxxiv.] *North British Railway (General Powers) Order Confirmation Act, 1904.* [4 EDW. 7.]

A.D. 1904.

Short title.

1. This Order may for all purposes be cited as the North British Railway (General Powers) Order 1904.

Incorporation of general Acts.

2. The Lands Clauses Acts the Railways Clauses Consolidation (Scotland) Act 1845 Part I. (relating to construction of a railway) and Part II. (relating to extension of time) of the Railways Clauses Act 1863 and the provisions of the Companies Clauses Consolidation (Scotland) Act 1845 with respect to the several matters following (that is to say) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The conversion of the borrowed money into capital ;

The consolidation of the shares into stock ;

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act ;

and Parts I. II. and III. of the Companies Clauses Act 1863 (relating respectively to cancellation and surrender of shares to additional capital and to debenture stock) as amended by subsequent Acts are (except where expressly varied by or inconsistent with this Order) incorporated with and form part of this Order.

Interpretation.

3. In this Order the several words and expressions to which meanings are assigned by the incorporated Acts shall have the same respective meanings unless there be something in the subject or context repugnant to such construction and in the said Acts incorporated in this Order the word “schoolmasters” means clerks of parish councils or persons acting as such clerks.

Power to make railway.

4. Subject to the provisions of this Order the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the railway herein-after described with all proper stations sidings approaches works and

conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for that purpose The railway herein-before referred to and authorised by this Order is—

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—

A railway 3 furlongs 5·44 chains in length wholly situate in the parish of Inverkeithing in the county of Fife commencing by a junction with the Company's Inverkeithing and North Queensferry Branch Railway at a point one hundred and seventy yards or thereabouts measuring in a northerly direction from the point where the said branch railway passes under the railway of the Forth Bridge Railway Company from the Forth Bridge to Inverkeithing and terminating at or about high-water mark of ordinary spring tides at a point on the north side of the Firth of Forth situate one hundred yards or thereabouts measuring in a south-westerly direction from the South Lodge of Castlandhill House.

5. If the railway by this Order authorised is not completed within five years from the passing of the Act confirming this Order then on the expiration of that period the powers by this Order granted to the Company for making and completing such railway or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Period for
completion of
railway.

6. If the Company fail within the period limited by this Order to complete the railway by this Order authorised the Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period limited until the railway is completed and opened for public traffic or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of such railway and the said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Order and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854:

Penalty im-
posed unless
railway
opened
within time
limited.

Every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the King's and Lord Treasurer's Remembrancer on behalf of the Court of Exchequer in Scotland in the

[Ch. cxxxiv.] *North British Railway (General Powers) Order Confirmation Act, 1904.* [4 Edw. 7.]

A.D. 1904. — bank and to the credit named in such warrant or order and shall not be paid thereout except as herein-after provided :

But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company were prevented from completing or opening the railway by unforeseen accident or circumstances beyond their control. Provided that want of sufficient funds shall not be held to be a circumstance beyond their control.

Application
of penalty for
non-comple-
tion of rail-
way.

7. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the Edinburgh Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway by this Order authorised or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Order and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the Court of Exchequer in Scotland may seem fit. And if no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a judicial factor has been appointed or the Company are insolvent or the railway in respect of which the penalty has been incurred or any part thereof has been abandoned be paid or transferred to such judicial factor or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the Company.

Railway to
form part of
Company's
undertaking.

8. With respect to tolls rates and charges and for all other purposes whatsoever the railway by this Order authorised shall form part of the Company's undertaking.

Agreements
with Admi-
rality.

9. The Company may enter into and carry into effect any contract or agreement with the Admiralty that may be deemed expedient for the sale to the Admiralty of the railway by this Order authorised to be constructed or any part of said railway or with respect to the working and use of the said railway or any

part thereof and the Inverkeithing and North Queensferry Branch Railway of the Company or any part thereof. A.D. 1904.

10. The several rights powers facilities and provisions by section 57 of the North British Edinburgh Perth and Dundee and West of Fife Railways Amalgamation Act 1862 granted secured and provided in favour of the Caledonian Railway Company and other companies shall extend and apply in all respects to the railway by this Order authorised as if such railway formed part of the railways of the Company north of the Forth at the date of the passing of such Act and shall notwithstanding any contract or agreement between the Company and the Admiralty continue to be applicable to the said railway as though such railway remained part of the system of the Company north of the Forth.

Extending facilities in favour of Caledonian Railway Company.

11. Subject to the provisions of this Order the Company may enter upon take and use for the purposes of their undertaking in connexion with the working of the Gifford and Garvald Railway the following lands delineated on the deposited plans and described in the deposited books of reference (that is to say):—

Power to take certain lands.

Certain lands in the parish of Humbie in the county of Haddington on the south side of and adjoining the Gifford and Garvald Railway to the east of Humbie Station.

12. The Company may hold and may use and appropriate for the purposes of their undertaking in connexion with the working of the Gifford and Garvald Railway the following lands which have been already acquired by them (that is to say):—

Company may hold certain lands already acquired.

In the county of Haddington—

- (A) Certain lands in the parish of Pencaitland on the north side of and adjoining the Gifford and Garvald Railway at Pencaitland Station on which a stationmaster's house has been or is being constructed :
- (B) Certain lands in the parish of Humbie on the south-west side of and adjoining the said railway at Salton Station on which a stationmaster's house has been or is being constructed :
- (c) Certain lands in the parish of Yester on the south-east side of and adjoining the said railway at Gifford Station on which a stationmaster's house has been or is being constructed :

A.D. 1904. — And the expenditure of money by the Company in or about the purchase of the said lands is hereby sanctioned and confirmed. But nothing in this Order shall exempt the Company from any action or other proceeding for nuisance in the event of any nuisance having been or being caused or permitted by them upon any lands acquired by them as aforesaid to which this section relates.

Lands for extraordinary purposes.

13. The quantity of land to be taken by the Company by agreement for the extraordinary purposes mentioned in the Railways Clauses Consolidation (Scotland) Act 1845 shall not exceed five acres but nothing in that Act or in this Order shall exempt the Company from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land so taken.

Period for compulsory purchase of lands.

14. The powers of the Company and of the Lauder Light Railway Company for the compulsory purchase of lands under the powers of this Order shall cease after the expiration of three years from the passing of the Act confirming this Order.

Owners may grant servitudes &c.

15. Persons empowered by the Lands Clauses Acts to sell and convey lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Company any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and feu duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

Power to divert road.

16. Notwithstanding the deposited plans and sections the Company shall not be bound to divert the road or public highway No. 22 in the parish of Inverkeithing as shown thereon but may divert the said road in the manner shown coloured blue upon the amended plan and section signed by the Right Honourable Andrew Graham Murray Secretary for Scotland and copies of which amended plan and section have been deposited in the Private Bill Office of the House of Commons the Parliament Office of the House of Lords and the office of the principal sheriff clerk of the county of Fife and subject to the provisions of this Order the Company may stop up and cause to be discontinued as a road so much of the existing road as is situated south or south-east of the said diversion of road coloured blue.

17. The road referred to in the immediately preceding section of this Order shall not be stopped up until the sheriff shall have certified that the new road has been completed to his satisfaction and is open for public use :

A.D. 1904.

As to stop-
ping up road
in case of
diversion.

Before applying to the sheriff for his certificate the Company shall give to the road authority of the district in which the existing road is situate seven days' notice in writing of their intention to apply for the same :

As from the date of the said certificate all public rights of way over or along the existing road or portion shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of road stopped up as far as the same is bounded on both sides by lands of the Company.

18. The powers granted to the Company by the North British Railway Act 1901 for the compulsory purchase of certain of the lands for the purposes of their undertaking described in section 10 of that Act are hereby extended and may be exercised by the Company for a further period of two years from the ninth day of August one thousand nine hundred and four and on the expiration of that period those powers shall cease.

Extension of
time for pur-
chase of cer-
tain lands
described in
section 10
of North
British Rail-
way Act
1901.

The lands herein-before referred to are as follows :—

In the county of Lanark—

(B) Certain lands in the parish of Shotts on the north side of the railway of the Company from Westeraigs to Armadale west of the boundary between the counties of Lanark and Linlithgow near Woodend Junction :

In the counties of Lanark and Linlithgow—

Certain lands in the parishes of Shotts and Bathgate on the south side of the railway of the Company from Westeraigs to Armadale at Woodend Junction.

19. The powers granted to the Company by the North British Railway Act 1895 as extended and continued by the North British Railway (General Powers) Act 1900 and the North British Railway (General Powers) Act 1902 respectively for the compulsory purchase of lands for the purposes of the Kirkcaldy new railways and works by the first-mentioned Act authorised are hereby further extended and continued and may be exercised by the Company

Further ex-
tension of
time for pur-
chase of
lands for
Kirkcaldy
new railways
and works.

[A.D. 1904. —] for a further period of two years from the sixth day of July one thousand nine hundred and four and on the expiration of that period those powers shall cease.

Further extension of time for completion of Kirkcaldy new railways and works.

20. The powers granted to the Company by the North British Railway Act 1895 for the completion of the Kirkcaldy new railways and works by that Act authorised as extended and continued by the North British Railway (General Powers) Act 1900 and the North British Railway (General Powers) Act 1902 respectively are hereby further extended and continued and may be exercised by the Company for a further period of three years from the sixth day of July one thousand nine hundred and six and sections 15 and 16 of the said Act of 1895 shall be read and construed as if the period further extended and limited by this Order had been the period limited by that Act for the completion of the said railways and works. If the said railways be not completed within the said further extended period then on the expiration of that period the powers of making and completing the same and otherwise in relation thereto shall cease except as to so much of the said railways as shall then be completed.

Restrictions on displacing persons of labouring class.

21. The Company shall not under the powers of this Order or under the powers of any former Act extended by this Order so far as such extended powers relate to lands for the compulsory purchase of which an extension of time is granted by this Order purchase or acquire in any district within the meaning of the Public Health (Scotland) Act 1897 ten or more houses which on the fifteenth day of December next before the passing of the Act confirming this Order or of the former Act by which such purchase or acquisition was originally authorised (as the case may be) were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Secretary for Scotland ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied:

If the Company acquire or appropriate any house or houses in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the Court of Session and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the Court may if it think fit reduce such penalty:

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

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22. The Company and the West Highland Railway Company and the Forth Bridge Railway Company as the case may be notwithstanding anything to the contrary in the Lands Clauses Consolidation (Scotland) Act 1845 or the Lands Clauses Consolidation Act 1845 or in any Act relating to those companies respectively with which those Acts or either of them are incorporated retain and hold for the period of ten years from the commencement of the Act confirming this Order any lands acquired by them on which the adjoining owner has not entered and which have not yet been applied to the purposes of their respective undertakings or sold or disposed of by them But the said Companies respectively during such period may and within two years after its expiration shall sell feu or otherwise dispose of all such parts of those lands as shall not then have been applied to or are not then required for purposes of their respective undertakings.

Extending time for sale of superfluous lands.

23. The conveyance contained in the contract of excambion between the Company the lord provost magistrates and councillors of the burgh of Perth and John Dewar and Sons Limited by the Company to the said lord provost magistrates and councillors (1) of a piece of land on the west side of Glover Street Perth in the county of Perth extending to one hundred and forty-four square yards or thereby (2) of a piece of land on the west side of Glover Street Perth in the county of Perth extending to three hundred and five square yards or thereby and (3) of a perpetual right of use for a roadway of a piece of land on the east side of Glover Street Perth in the county of Perth extending to one hundred and ninety square yards or thereby and the conveyance contained in said contract of excambion by the Company at the request of the said lord provost magistrates and councillors to the said John Dewar and Sons Limited (4) of a piece of land lying to the west of Glover Street Perth in the county of Perth extending to eighty-three square

Confirming excambion of lands at Perth.

A.D. 1904. — yards or thereby and the conveyance contained in said contract of excambion by the said lord provost magistrates and councillors with consent as regards the lands first herein-after described of the said John Dewar and Sons Limited for all right and interest they may have therein and the said John Dewar and Sons Limited for such right and interest to the Company (5) of certain lands south of Glasgow Road Perth in the county of Perth adjoining the said station forming part of the old road between the said Glasgow Road and the said station extending to five hundred and eighty square yards or thereby and (6) of the lands on the east side of Glover Street Perth opposite the junction with that street of Needless Road extending to eight square yards or thereby are hereby sanctioned and confirmed.

Company may stop up and discontinue subway in burgh and parish of Burntisland. 24. The Company may stop up and discontinue the subway in the burgh and parish of Burntisland in the county of Fife which passes under the railway and through the premises of the Company at or near Scholars Brae within the said burgh and as from the date of such stopping up and discontinuance all public rights of way through or along the said subway shall be extinguished.

As to construction of deviation by Lauder Light Railway Company in parish of Channelkirk. 25. The construction by the Lauder Light Railway Company in accordance with the deposited plans and sections of the deviation in the parish of Channelkirk in the county of Berwick from the lines and levels shown on the plans and sections deposited with reference to the railway authorised by the Lauder Light Railway Order 1898 is hereby confirmed and sanctioned and the said deviation as so constructed shall for all purposes be deemed part of the undertaking of that company.

Lauder Light Railway Company may enter upon take and use certain lands. 26. The Lauder Light Railway Company may for the purposes of the said deviation in the parish of Channelkirk aforesaid enter upon take and use the lands shown upon the deposited plans and described in the deposited book of reference and also the lands herein-after described (that is to say) :—

Certain lands situate in the said parish of Channelkirk occupied by and lying along both sides of the Lauder Light Railway immediately to the south of Oxton Station.

Power for Company to raise capital by shares or stock. 27. The Company may subject to the provisions of Part II. of the Companies Clauses Act 1863 raise by the creation and issue at their option of new ordinary shares or stock or new preference shares or stock or new preference shares or stock convertible into ordinary preference stock and ordinary stock or wholly or partially

by one or more of those modes respectively any additional capital not exceeding in the whole four hundred thousand pounds but the Company shall not issue any share of less nominal value than ten pounds nor shall any share vest in the person accepting the same unless and until a sum not being less than one-fifth of the amount of such share shall have been paid in respect thereof.

A.D. 1904.

28. All preference shares or stock convertible into ordinary preference stock and ordinary stock created and issued under the provisions of this Order or any Act or Order relating to the Company may by agreement with the holders thereof be converted on the same terms and subject to the like conditions as all preference shares or stock convertible into ordinary preference stock and ordinary stock authorised to be created and issued under the North British Railway Act 1888.

Extending provisions of Act of 1888 to preference shares or stock convertible into ordinary stock.

29. Except as by this Order otherwise provided the capital in new shares or stock created by the Company under this Order and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital:

Except as otherwise provided new shares or stock to be subject to same incidents as present shares.

The capital in new shares or stock so created shall form part of the capital of the Company.

30. Every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the Company and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called and paid on such new shares or to the whole amount of such stock as the case may be.

Dividends on new shares or stock.

31. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

Restriction as to votes in respect of preference shares or stock.

32. Subject to the provisions of any Act or Order already passed or confirmed by which the Company are authorised to raise capital by new shares or stock and to the provisions of this Order and any other Act or Order passed or confirmed in the present session of Parliament whether before or after the passing of

New shares or stock raised under this Order and any other Act or Order may be of same class.

A.D. 1904. the Act confirming this Order by which the Company may be authorised to raise capital by new shares or stock the Company may if they think fit raise by the creation and issue of new shares or stock of one and the same class all or any part of the aggregate capital which they are by such other Act or Order and this Order respectively authorised to raise by the creation and issue of new shares or stock.

Calls. 33. Twenty per centum on the amount of any share shall be the greatest amount of any call which may be made thereon and there shall be an interval of not less than three months between any two successive calls and the Company shall not call up more than three fourths of a share in any year.

Power to borrow. 34. The Company may in respect of the additional capital of four hundred thousand pounds which they are by this Order authorised to raise from time to time borrow on mortgage of the undertaking any sum not exceeding in the whole one hundred and thirty-three thousand three hundred and thirty-three pounds but no part thereof shall be borrowed until shares for so much of the said additional capital as is to be raised by means of shares are issued and accepted and one half of such capital is paid up and the Company have proved to the sheriff who is to certify under the forty-second section of the Companies Clauses Consolidation (Scotland) Act 1845 before he so certifies that shares for the whole of such capital have been issued and accepted and that one-half of such capital has been paid up and that not less than one-fifth part of the amount of each separate share in such capital has been paid on account thereof before or at the time of the issue or acceptance thereof and until stock for one-half of so much of the said additional capital as is to be raised by means of stock is fully paid up and the Company have proved to such sheriff as aforesaid before he so certifies that such shares or stock (as the case may be) were issued and accepted and to the extent aforesaid paid up bonâ fide and are held by the persons or corporations to whom the same were issued or their executors administrators successors or assigns and also so far as the said additional capital is raised by shares that such persons or corporations or their executors administrators successors or assigns are legally liable for the same and upon production to such sheriff of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

35. The provisions of the North British Railway (General Powers) Order 1903 authorising the appointment of a receiver or judicial factor for principal or interest moneys due upon any mortgage of the Company are hereby repealed but subject and without prejudice to any appointment of a receiver or judicial factor or proceedings taken under or by virtue of such provisions and in force or pending at the time of the passing of the Act confirming this Order.

A.D. 1904.
Provisions of Order of 1903 as to appointment of a receiver or judicial factor repealed.

36. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a judicial factor In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor is made shall not be less than ten thousand pounds in the whole.

For appointment of a judicial factor.

37. All mortgages granted by the Company in pursuance of the powers of any Act or Order before the passing of the Act confirming this Order and subsisting at the passing thereof shall during the continuance of such mortgages and as regards the undertaking comprised in and assigned by such mortgages and subject to the provisions of the Acts or Orders under which such mortgages were respectively granted have priority over all mortgages to be granted by virtue of this Order but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Existing mortgages to have priority.

38. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 The interest of all debenture stock of the Company at any time after the passing of the Act confirming this Order created and issued by the Company shall rank pari passu with the interest of all mortgages at any time after the passing of the Act confirming this Order granted by the Company and shall have priority over all principal moneys secured by such mortgages.

Company may create debenture stock.

39. All moneys raised by the Company under this Order whether by shares or stock or debenture stock or by borrowing shall be applied only to the general purposes of the undertaking of the Company being in each case purposes to which capital is properly applicable.

Application of moneys raised under Order.

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Company
may apply
corporate
funds.

40. The Company may from time to time apply for or towards all or any of the purposes of this Order to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts or Orders and which are not required for the purposes to which they are by those Acts or Orders made specially applicable.

Interest not
to be paid on
calls paid up.

41. No interest or dividend shall be paid out of any share or loan capital which the Company are by this Order or any Act or Order authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Order shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation (Scotland) Act 1845.

Deposits
for future
Orders or
Bills not to
be paid out
of capital.

42. The Company shall not out of any money by this Order authorised to be raised pay or deposit any sum which by any General Order for the regulation of proceedings under the Private Legislation Procedure (Scotland) Act 1899 or any Standing Order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to the Secretary for Scotland for a Provisional Order or to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

Provisions as
to general
Railway
Acts.

43. Nothing in this Order contained shall exempt any company named in this Order or the railways of such company from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies now in force or which may hereafter pass during this or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by any of the said companies.

Saving
rights of
Crown.

44. Nothing herein contained shall authorise the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in

writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the King's Majesty. A.D. 1904.

45. The Company shall not under the powers of this Order construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily. Works below high-water mark not to be commenced without consent of Board of Trade.

46. It shall not be lawful for the Company to construct any work on any land over which a right of salmon fishing belongs to His Majesty without having previously paid to the Commissioners of Woods such compensation as may be agreed upon for any injury which the works by this Order authorised may be reasonably expected to occasion to any such right of salmon fishing as in this section mentioned. And in case the amount of such compensation as aforesaid shall not be agreed upon the same shall be settled by two referees one being appointed by the said Commissioners and one being appointed by the Company or by an umpire to be appointed by the said referees: As to salmon fishing rights.

The Company shall make compensation for the damage or injury (if any) which may be sustained by His Majesty or His tenants in respect of any right of salmon fishing through the

[Ch. cxxxiv.] *North British Railway (General Powers) Order Confirmation Act, 1904.* [4 EDW. 7.]

A.D. 1904. — exercise of the powers of this Order although the work causing such injury or damage may be constructed elsewhere than on any land over which a right of salmon fishing belongs to His Majesty The amount of such compensation shall failing agreement be settled by arbitration as aforesaid.

Costs of
Order and
Act.

47. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Order and the Act confirming the same or otherwise in relation thereto shall be paid by the Company.

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